

# Om Sons India Handicraft Manufacturers & Others v. State of U.P. & Others

Allahabad High Court · Division Bench · 19 July 2017 · Writ - C No. 64854 of 2006 · **Writ disposed; Executive Engineer to decide surcharge representations within two months**

## HEADNOTE

Where a consumer paid an electricity bill including surcharge under protest and represented to the Executive Engineer that surcharge was not levyable and that Clause 6.7 of the U.P. Electricity Supply Code, 2005 required a hearing before levy, and the 2006 writ had remained pending without a counter affidavit, the Division Bench did not decide those contentions. Saying 'be that as it may', it remitted the representations dated 30.10.2006 and 3.11.2006 to the Executive Engineer (with liberty to file a fresh representation within a month if those applications were not traceable) to be decided within two months of a certified copy and representation, and disposed of the petition.

## FACTUAL SUMMARY

Om Sons India Handicraft Manufacturers and others filed Writ-C No. 64854 of 2006 against the State of U.P. and others. Opposite party No. 6, for whom Power Corporation counsel was later directed to be shown, had forwarded a bill together with surcharge. Time to file a counter affidavit was granted on 28 November 2006; none was filed. The petitioners stated they had paid the entire amount including surcharge under protest, and on 30 October 2006 and 3 November 2006 they asked the concerned Executive Engineer to decide whether surcharge was levyable. They submitted that Clause 6.7 of the U.P. Electricity Supply Code, 2005 required an opportunity of hearing before surcharge was levied, which was not given, and that according to the Supreme Court surcharge was not levyable at all. After several 2017 listings (illness slips of petitioners' counsel; directions to show Power Corporation counsel), the Division Bench heard the petition on 19 July 2017 when nobody appeared for the respondents.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.7

surcharge-levyability-remitted-to-executive-engineer

#### QUESTION

Will the writ court decide whether surcharge on an electricity bill was levyable, and whether Clause 6.7 required a hearing before levy, when the consumer has paid under protest and representations to the Executive Engineer remain undecided?

#### HOLDING

No. The Court recorded the Clause 6.7 hearing contention and the unnamed Supreme Court argument that surcharge was not levyable, but did not decide either. Because no counter affidavit had been filed and the 2006 writ had long been pending, it remitted the applications dated 30.10.2006 and 3.11.2006 to the concerned Executive Engineer. If those applications were not traceable, the petitioners could move a fresh representation within a month; any such representation was to be decided within two months of a certified copy of the order and the representation. The petition was disposed of with that observation.

**FLAG** Petitioner treated Clause 6.7 as requiring a hearing before surcharge; Clause 6.7 is the late-payment surcharge provision, not a hearing clause. The Court said 'Be that as it may' and did not construe 6.7. Source PDF concatenates six 2017 listing/adjournment orders (illness slips; showing Power Corporation counsel) with this 19.7.2017 disposal. Docket styles the first petitioner 'Manufacturers'.

## PRINCIPLE TAGS

**alternative-remedy-relegation** A 2006 writ challenging surcharge, pending without a counter, was disposed of by remitting the consumer's representations on levyability of surcharge to the Executive Engineer rather than deciding

Clause 6.7 or the unnamed Supreme Court argument.

**NOT DECIDED — NEGATIVE AUTHORITY**

**NOT DECIDED — WHETHER SURCHARGE ON THE BILL FORWARDED BY OPPOSITE PARTY NO. 6 WAS LEVYABLE**

Left to the Executive Engineer on the 30.10.2006 and 3.11.2006 applications or a fresh representation.

**NOT DECIDED — WHETHER CLAUSE 6.7 REQUIRED AN OPPORTUNITY OF HEARING BEFORE SURCHARGE WAS LEVIED**

Recorded as the petitioners' submission; the Court did not construe Clause 6.7.

**NOT DECIDED — WHETHER SURCHARGE WAS NOT LEVYABLE AT ALL ON THE UNNAMED SUPREME COURT AUTHORITY INVOKED BY THE PETITIONERS**

No case was named; the Court did not consider any precedent.

---

SCJ-663 · Om Sons India Handicraft Manufacturers & Others v. State of U.P. & Others · · Supply Code Jurisprudence

*A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.*